

§ 431. Preliminary procedure on warrant. (a) When a respondent is taken into custody pursuant to a warrant issued by a family court in New York city under section four hundred twenty-eight, he shall be taken before the court issuing the warrant if the respondent is taken into custody in New York city. If the respondent is taken into custody in a county not within New York city, he shall be taken before a family judge in that county.

(b) When a respondent is taken into custody pursuant to a warrant issued by a family court in a county not within the city of New York, he shall be taken before the court issuing the warrant if the respondent is taken into custody in the county in which the court sits. If the respondent is taken into custody in a different county, he shall be brought before a family court judge in that county.